

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CUPP033659: SUSANA ROMERO RUBALCABA vs WINCO FOOD, LLC, et al.

09/04/2026 in Department 43

**Motion for Sanctions FOR MONETARY, ISSUE, EVIDENTIARY, AND TERMINATING
SANCTIONS FOR SPOILIATION OF EVIDENCE AGAINST DEFENDANT WINCO
FOOD, LLC**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Plaintiff's Motion for Monetary, Issue, Evidentiary, and Terminating Sanctions for Spoliation of Evidence Against Defendant Winco Food, LLC.

Tentative Ruling: Plaintiff's Motion for Monetary, Issue, Evidentiary, and Terminating Sanctions for Spoliation of Evidence Against Defendant Winco Food, LLC is DENIED. Plaintiff failed to serve the Motion on Defendant's correct email address for service of documents.

On July 15, 2026, Kelly J. Snowden, Attorney at Law, Sophia R. Meyer Law, P.C., counsel for Defendant, filed with the Court and served on Plaintiff's counsel a "Notice of Change of Address" stating effective July 27, 2026, "*All future notices, pleadings, orders correspondence and other papers in this matter shall be directed to [1134 Pine Street, Redding, California, 96001] or to the firm's designated electronic services address at: eserve@srmlawpc.com.*"

Twenty-seven days later, on August 11, 2026, Plaintiff filed this motion and electronically served it on Defendant's attorneys by email to: Kelly@srmlawpc.com and cwaite@srmlawpc.com, addresses used prior to the change of address notice.

Notice is required to be provided at the address last given by a party. (Code Civ. Proc., § 1013.) On July 15, 2026, Defendant properly notified the Court and Plaintiff of its change of email address. (Cal. Rules Court, Rule 2.200.)

No opposition has been filed, strongly suggesting that the motion may not have been received in a timely manner. The issue of defective service has not been waived. The Court cannot grant an unopposed motion (particularly one requesting such severe sanctions) when service of the motion is defective. The motion is denied.

Moving party is ordered to serve notice of the Court's ruling.